

Contentious Chamber

Decision 64/2024 of April 26, 2024

Case Numbers: DOS-2021-04128 and DOS-2021-05260

Subject: Complaints regarding the processing of personal data carried out in the context of the invitation to vaccination against the COVID-19 virus – compliance with the principle of transparency and the obligation to inform (Articles 5.1.a), 12, 14, and 26 of the GDPR)

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Christophe Boeraeve and Romain Robert, members, resuming the case in this composition;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the Chamber of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the cases;

Considering Decision 100/2022 of June 3, 2022, of the Contentious Chamber¹;

Has made the following decision regarding:

The complainants:

Mr. X, hereinafter referred to as "complainant No. 1" (DOS-2021-04128);

Mrs. X, hereinafter referred to as "complainant No. 2" (DOS-2021-05260);

Hereinafter collectively referred to as "the complainants";

The defendant: The Walloon Agency for a Quality Life (AVIQ), Central Administration, Data Protection Unit, Rue de la Rivelaïne, 21, 6061 Charleroi, hereinafter referred to as "AVIQ" or "the defendant";

¹ This decision has been published here:

<https://www.autoriteprotectiondonnees.be/publications/avertissement-et-reprimande-n-100-2022.pdf>

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Represented by Master Valentin HANQUET and Master Salomé VAN BUNNEN, lawyers (Sotra Avocats - Advocaten), whose office is located at 1050 Brussels, Avenue Louise, 65.

I. Facts and Procedure

Introduction of Complaints and Joinder

1. On May 16, 2021 (DOS-2021-04128) and July 29, 2021 (DOS-2021-05260), the complainants each filed a complaint with the Data Protection Authority (DPA) against the Walloon Agency for a Quality Life (AVIQ), the defendant.

2. On January 24, 2022 (DOS-2021-04128) and October 29, 2021 (DOS-2021-05260), the DPA's First Line Service (SPL) declared these complaints admissible and forwarded them to the Contentious Chamber.

3. The Contentious Chamber noted, based on the complaint forms submitted and the documents provided after their submission (resulting in particular from the exchanges that complainant No. 1 had with AVIQ – see below), that the subject of the complaints, all grievances combined - whether expressed by one or the other complainant - should be defined as follows, with the following breaches being reported:

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(1) a breach of Articles 5, 6, and 9 of the GDPR in that the disputed data processing carried out by AVIQ (namely, the processing of identification data for the purpose of inviting individuals to be vaccinated) would be unlawful as it would not be based on any admissible legal basis within the meaning of these provisions;

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(2) a breach of Article 17.1 of the GDPR in that AVIQ wrongly failed to respond favorably to the complainants' requests for deletion based on the unlawfulness of the processing of their data and the absence of their consent regarding this processing;

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(3) a breach of Article 12.3 of the GDPR in that AVIQ failed to respond to complainant No. 2's request to exercise the right to erasure within the month required by this provision;

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(4) a breach of the principle of transparency and the right to information (Articles 5.1.a), 12, and 14 of the GDPR) in that the invitation letters to be vaccinated contained no information for their recipients, namely in this case for the complainants;

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(5) a breach of Article 26 of the GDPR in that AVIQ did not, while it was required to do so under Article 7.2. of the Cooperation Agreement of March 12, 2021:

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defined, with the other entities mentioned in this Article 7.2., its obligations to ensure compliance with the requirements of the GDPR, particularly regarding the exercise of the rights of data subjects and the information referred to in Articles 13 and 14 of the GDPR;

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made public the main points of this agreement to the data subjects.

4. On February 25, 2022, the Dispute Chamber informs each of the complainants (No. 1 and No. 2) that it has also received another complaint against AVIQ, which raises at least in part the same grievances as those developed by each of them in their respective complaints. In order to allow for a coherent handling of these complaints, the Dispute Chamber requests the consent of each complainant for the content of their complaint and their identity to be shared with the other complainant. On February 27, 2022 (DOS-2021-04128) and February 28, 2022 (DOS-2021-05260), complainant No. 1 and complainant No. 2 each give their consent for this purpose.

5. Given that the grievances are (at least in part) common to both complaints, the Dispute Chamber decides to join them as it considers them linked by such a close relationship that there is an interest in processing them and making a decision regarding them at the same time to ensure the consistency of its decisions.

The decision 100/2022 of the Dispute Chamber and its follow-up

6. On June 3, 2022, the Dispute Chamber adopts decision 100/2022, which addresses part of the grievances raised by the complaints of the complainants.

7. Under this decision (point 57 of decision 100/2022), the Dispute Chamber proceeds with a technical dismissal of the complaints, having insufficient evidence to support them that could lead to a finding of breaches of the GDPR on the part of the defendant, except (a) on the one hand, for the warning it issues under point B.2. of its decision 100/2022 regarding the quality of the response provided by the defendant to the request for erasure from complainant No. 1 (points 46-51 and 58 of decision 100/2022) and (b) on the other hand, for its decision to address the grievances arising from the violation of Articles 5.1.a), 12, 14, and 26 of the GDPR on the merits (point 25 of decision 100/2022).

8. On June 3, 2022, the Dispute Chamber also sends a letter to the parties in which it informs them of its decision to address the complaints on the merits regarding the grievances raised.

2 This refers to the Cooperation Agreement of March 12, 2021, concluded between the Federal State, the Flemish Community, the French Community, the German-speaking Community, the Common Community Commission, the Walloon Region, and the French Community Commission, which notably addressed issues related to data processing necessary for vaccination against the COVID-19 virus.

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Regarding the violation of the principle of transparency and the right to information of the concerned individual (Articles 5.1.a), 12, and 14 of the GDPR) as well as Article 26 of the GDPR, in application of Article 95.1, 1° and Article 98 of the LCA (complaints (4) and (5) of point 3 above). As for the other

complaints in the complaints (complaints (1) to (3) of point 3 above), it is specified to the parties that they were subject to decision 100/2022 of the Contentious Chamber that has just been mentioned. No appeal has been filed with the Market Court against this decision 100/2022.

9. Still in the same letter dated June 3, 2022, the parties are informed by the Contentious Chamber (Article 99 of the LCA) of the deadlines for submitting their conclusions regarding the complaints listed. The deadline for receiving the defendant's response conclusions is set for July 15, 2022, for the plaintiffs' reply conclusions on August 8, 2022, and for the defendant's reply conclusions on August 30, 2022.

10. On June 6, 2022, complainant No. 1 expresses his intention to avail himself of the opportunity to be heard, in accordance with Article 98 of the LCA. Complainant No. 2 does the same on June 9, 2022.

11. On June 28, 2022, the defendant requests a copy of the file (Art. 95, §2, 3° LCA), which is transmitted to him on June 30, 2022.

12. On July 1, 2022, the defendant also expresses his intention to avail himself of the opportunity to be heard, in accordance with Article 98 of the LCA.

****Relevant Facts Regarding Complaints (4) and (5) Addressed in This Decision****

13. The relevant facts regarding the complaints subject to this decision can be summarized as follows. As for the complaints themselves, they have been more fully developed by the parties in their conclusions, which the Contentious Chamber will summarize (see below). The Contentious Chamber specifies that by "complaint," it refers in the following of this decision to the only remaining complaints that it has decided to address on the merits (point 8).

14. The AVIQ sent several vaccination invitations against the COVID-19 virus to the complainants, either by an undated letter to complainants No. 1 and No. 2, by emails dated May 5 and July 9, 2021, to complainant No. 1, and by SMS on May 5 and July 9, 2021, also to complainant No. 1. During the hearing on January 30, 2024, the parties agreed that the first undated paper invitation sent to complainants No. 1 and No. 2 must have been sent to them in March 2021 (see the minutes of the hearing on January 30, 2024). The parties rely in this regard on the schedule of the vaccination invitations that began in February 2021 by healthcare personnel, continued in March 2021 with elderly individuals, and then, starting in April 2021, with the...

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public at large by target audience (see footnote 2 of the defendant's summary conclusions).

15. The intervention of AVIQ is part of the context of the fight against the pandemic related to the COVID-19 virus, in which the federated entities and the federal authority have worked, each within their competencies, to administer vaccines against this virus to the population.

16. To this end, a Cooperation Agreement dated March 12, 2021 (hereinafter referred to as "the Cooperation Agreement") was concluded between the Federal State, the Flemish Community, the French Community, the German-speaking Community, the Common Community Commission, the Walloon Region, and the French Community Commission. It specifically addressed issues related to the processing of data necessary for vaccination.

17. In execution of Article 7.2 of this Cooperation Agreement, the defendant and the 7 other concerned entities signed an agreement dated March 3, 2021, aimed at implementing Article 26 of the GDPR and titled "Provisions regarding the joint processing of personal data by the competent services of the federated entities, AFMPS (i.e., the Federal Agency for Medicines and Health Products) and Sciensano in the context of the organization and registration of COVID-19 vaccinations" (hereinafter referred to as "the Article 26 GDPR Agreement").

18. The same entities (including AVIQ) also developed a "DOCLR Privacy Policy – vaccinations: privacy policy of the online application for the invitation to vaccination against COVID-19 and for the reservation of one or more vaccination appointments," named after their common subcontractor and intended to inform the data subjects of the data processing operations (hereinafter referred to as "the Privacy Policy").

19. At the time of filing their complaint, the complainants had not previously contacted AVIQ, indicating in their complaint form that they were unable to do so since the invitation letter received did not mention either the contact details of the data controller or those of its data protection officer (DPO).

20. Invited by the SPL to contact the DPO of AVIQ, complainant No. 1 first approached the defendant

on May 30, 2021. Complainant No. 2 did the same in identical terms on August 31, 2021. In their letters, the complainants pointed out the shortcomings listed in point 3 above, except for the alleged violation of Article 26 of the GDPR, which they would denounce in a subsequent letter dated September 25, 2021 (point 25).

21. On July 2, 2021, AVIQ responded to complainant No. 1. Regarding information and transparency, AVIQ referred complainant No. 1 to the document available on the DOCLR website concerning the invitation to vaccination (a DOCLR link is provided) on one hand, and to an explanatory document found on the Vaccinnet page regarding vaccination data (a link is provided) on the other hand.

22. On July 28, 2021, complainant No. 1 reacted to the response received from AVIQ. Regarding the principle of transparency and his right to information (Articles 5.1.a), 12, and 14 of the GDPR), complainant No. 1 emphasized that AVIQ would not deny that the invitation to get vaccinated contained no (direct) information regarding the processing of his personal data, in violation of the aforementioned articles of the GDPR.

23. On August 31, 2021, AVIQ responded once again to complainant No. 1.

24. Regarding the request addressed to it by complainant No. 2 on the same date of August 31, 2021, AVIQ sent her an acknowledgment of receipt on the same day informing her that for any questions related to the exercise of a right in data protection, she would receive a response within one month.

25. On September 25, 2021, complainant No. 1 reacted to the response provided by AVIQ, once again insisting on the lack of information in violation of the principle of transparency and his right to information (Articles 5.1.a), 12, and 14 of the GDPR), referring to the "DOCLR" link provided by AVIQ (point 21) and its not easily accessible nature in contradiction with recitals 39 and 58 of the GDPR. Complainant No. 1 also denounced the alleged absence of an agreement in the sense of Article 26 of the GDPR as required by Article 7.2 of the Cooperation Agreement.

26. On October 28, 2021, AVIQ, through its General Administrator, responded to complainant No. 1, stating that it had taken note of his last inquiry of September 25, 2021. It indicated that it believed it had answered his questions through the multiple previous responses provided.

The Conclusions of the Parties

27. On July 15, 2022, the Litigation Chamber received the defendant's response conclusions and its file of documents. The defendant having also submitted summary conclusions, the summary of its complete argumentation can be found below in points 32 and following.

28. On August 8, 2022, the Litigation Chamber received the reply conclusions of the complainants and their file of documents.

29. The complainants denounce that in violation of Articles 12 and 14 of the GDPR, the defendant did not provide them with the information related to the mentions of Article 14 of the GDPR, particularly because, even assuming that the DOCLR privacy policy was indeed accessible via the QR Code, the Vaccinnet link, the "Make an Appointment" buttons, or the communicated URL link (which the defendant remains unable to...

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demonstrate according to them) contained in the letters, emails, and texts received, no information accompanies them specifying that said information is accessible through these means. This is all the more true for the "Make an Appointment" button or the URL link they are invited to activate if they wish to get vaccinated, which may not be their choice.

30. Regarding compliance with Article 26 of the GDPR, the complainants believe that the AVIQ does not prove that at the time of sending the first vaccination invitation (March 2021) nor during subsequent mailings (May and July 2021), the joint data controllers of which it is a part had, in accordance with Article 7.2 of the Cooperation Agreement and Article 26 of the GDPR, concluded an agreement as defined by the latter provision. Article 26 of the GDPR has therefore, according to them, been violated.

31. In support of the above, the complainants request the Disciplinary Chamber to sanction the violations of Articles 5.1. a), 12, 14, and 26 of the GDPR by means of corrective measure(s) and/or appropriate sanction(s). They invite the Disciplinary Chamber to take into account the following elements:

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the violation of the invoked provisions constitutes a serious offense as these provisions enshrine or reflect essential principles of data protection;

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as a public authority, the AVIQ was required to exhibit exemplary behavior;

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the GDPR has been in effect since May 25, 2018, and was therefore applicable for more than 3 years at the time of the events, including its obligations of transparency and information (the unprecedented health crisis having no impact on this, according to them);

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when sending the second invitations, while the AVIQ was, through its DPO, aware of the complainants' grievances, it took no measures to provide the complainants with clear and easy access as required by Article 12.1 of the GDPR to all the information in Article 14 of the GDPR.

32. On August 30, 2022, the Disciplinary Chamber received the additional and summary submissions of the defendant.

33. The defendant states that its privacy policy has always been available on the DOCLR website since the sending of the first invitations for any concerned person without the need to make an appointment to get vaccinated in order to consult it. The information provided there contains all the mentions to be included in a privacy policy in execution of Article 14 of the GDPR applicable in this case.

34. Regarding the alleged violation of Article 26 of the GDPR, the defendant states that an agreement as required by Article 26 of the GDPR was concluded on March 3, 2021, between the

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joint data controllers (including the AVIQ) in execution of Article 7.2 of the Cooperation Agreement, that is, before the sending of vaccination invitations to the complainants, and that the main lines of this agreement (the Article 26 GDPR agreement) are available in the "DOCLR privacy policy" established by the said joint data controllers.

35. Therefore, the defendant concludes that neither the principle of transparency (Article 5.1. a) of the GDPR) nor Articles 12, 14, and 26 of the GDPR have been violated. In support of the above, it requests that as a primary matter, the Disciplinary Chamber dismiss the complaint. As a subsidiary matter, the defendant believes that if the Disciplinary Chamber were to consider that the AVIQ violated all or part of the invoked provisions, quod non, it should take into account the circumstances of the case, namely: the context of the health crisis that broadened the scope of the AVIQ's competencies; the scope of action of the AVIQ which, in this context, was extended in a very short time; the fact that strategic decisions were made, initially, at another level of authority (higher) and the fact that each federated entity, in a second step, operationalized the strategies defined at the federal level in the same way, as well as finally, the constant concern on the part of the AVIQ to demonstrate collaboration, diligence, and transparency despite an unprecedented health situation, to which no administration had ever been confronted.

The Hearing of January 30, 2024

36. On December 18, 2023, the parties are informed that the hearing will take place on January 30, 2024.

37. On January 30, 2024, the parties are heard by the Disciplinary Chamber.

38. On February 7, 2024, the minutes of the hearing are submitted to the parties.

39. On February 12, 2024, the Disciplinary Chamber receives from the defendant some formal remarks regarding the minutes, which remarks are attached to it in accordance with Article 54 para. 2 of the Rules of Procedure.

II. Motivation

II.1. Regarding the qualification of the parties and other entities involved and the obligations arising therefrom

40. The Disciplinary Chamber notes that the Cooperation Agreement provides in its Article 7.1

that the competent federated entities or the agencies designated by the competent federated entities and the federal authority act, each for their competence, as data controllers of the personal data referred to in said Cooperation Agreement. Article 7.1 continues by stating that it concerns more precisely the following entities or agencies:

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1° for individuals who are vaccinated in the territory of the Flemish Region or in an establishment of the bilingual region of Brussels-Capital that, due to its organization, must be considered as an establishment belonging exclusively to the Flemish Community: the Agency for Care and Health;

2° for individuals who fall under the competencies of the French Community: the Office of Birth and Childhood;

3° for individuals who fall under the competencies of the Walloon Region: the Walloon Agency for Health, Social Protection, Disability, and Families, namely AVIQ, the defendant;

4° for individuals who fall under the competencies of the Common Community Commission of Brussels-Capital: the Common Community Commission;

5° for individuals who fall under the competencies of the French Community Commission of Brussels-Capital: the French Community Commission;

6° for individuals who fall under the competencies of the German-speaking Community: Ministry of the German-speaking Community;

7° for individuals who fall under the competencies of the Federal Authority: Sciensano.

41. Paragraph 2 of Article 7 states that "Sciensano, the competent federated entities, and the agencies designated by the competent federated entities, each within their area of competence, shall transparently define their respective responsibilities, particularly regarding the exercise of the rights of the data subject and the provision of information. To this end, Sciensano, the competent federated entities, and the agencies designated by the competent federated entities shall take the necessary measures to generally establish the obligations of the data controllers and in particular the roles and respective relationships of the joint data controllers with respect to the data subjects. The joint data controllers shall provide the interested parties with a single point of contact within each federated entity and the federal authority for the exercise of their rights."

42. The Contentious Chamber retains the qualification of joint controllers as assigned to the listed entities, including the defendant, as provided for by the Cooperation Agreement. It emphasizes that in a recent ruling dated January 11, 2024, the Court of Justice of the European Union (CJEU) mentioned this power granted to the legislator to designate in the law.

3 It is the Contentious Chamber that emphasizes this.

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of joint controllers and therefore, this qualification can indeed result from the choice of the legislator⁴.

43. As necessary, the Contentious Chamber further recalls, as the CJEU has also had the opportunity to clarify recently in response to a prejudicial question explicitly posed in this regard⁵, that "it cannot be required that there is a formal agreement between the controllers regarding the purposes and means" (§ 44) in order to qualify them as joint controllers. The Court specifies in this regard that "certainly under Article 26, paragraph 1 of the GDPR, read in light of Recital 79 thereof, the joint controllers of processing must, by way of agreement between them, transparently define their respective obligations in order to ensure compliance with the requirements of this regulation. However, the existence of such an agreement is not a prerequisite for two or more entities to be qualified as joint controllers of processing, but rather an obligation that Article 26, paragraph 1 imposes on joint controllers once qualified as such, in order to ensure compliance with the GDPR requirements imposed on them. Thus, this qualification arises solely from the fact that several entities have participated in determining the purposes and means of the processing" (§ 45). In this case, the defendant claims that such an agreement has been concluded.

II.2. Regarding the alleged violation of the principle of transparency and the obligation to inform (Articles 5.1. a), 12.1, and 14.1-2 of the GDPR) as well as the obligation to facilitate rights (Article 12.2 of the GDPR)

II.2.1. Position of the complainants

44. Regarding the first invitation to get vaccinated (which, for the record, the parties place the sending in March 2021), the complainants denounce that the AVIQ does not specify at all that by clicking on the mentioned internet link (www.jemevaccine.be) or by scanning the QR Code present on the letter, the concerned person will have access to all the information included in Article 14 paragraphs 1 and 2 of the GDPR or at the very least that by going to the DOCLR platform via the QR Code (which platform is not referenced anywhere directly in this letter), the concerned person will be able to access said information. Specifically, the complainants denounce the absence of information directly accessible in the letter or even indirectly accessible by reference to a link or other whose content would be announced.

4 See point 49 of the CJEU judgment "Belgian Monitor" of January 11, 2024, C-231/22 – Belgian State v. Data Protection Authority, ECLI:EU:C:2024:7: "It follows from points 44 to 48 of this judgment that, under the combined provisions of Article 26, paragraph 1, and Article 4, point 7, of the GDPR, the joint responsibility of several actors in a processing chain concerning the same personal data can be established by national law provided that the different processing operations are united by purposes and means determined by that law and that it defines the respective obligations of each of the joint controllers."

5 See §§ 44 and 45 of the CJEU judgment of December 5, 2023, C-683/21, *Nacionalinis visuomenės sveikatos centras*, ECLI:EU:C:2023:949.

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45. Regarding the subsequent invitations received in May and July 2021, both in the form of emails and SMS messages, the complainants argue that, similarly, the AVIQ does not "provide" direct information regarding the data processing operations carried out, especially if the individual does not wish to be vaccinated. Indeed, it would only be by clicking on the "Make an Appointment" button (mail) or by clicking on the URL mentioned if the "Make an Appointment" button were not to function (mail) or on the URL received (SMS) that the concerned individual would have (which is not the case according to the complainants – see below) access to the DOCLR platform where a "privacy" link would redirect them to the required information.

46. In conclusion, the complainants believe that the AVIQ has therefore not "provided" the required information as stipulated by the GDPR (the concerned individual should not have to guess or search for it, whether they wish to be vaccinated or not) in violation of Articles 12 and 14 of the GDPR.

47. In light of all the invitations received, the complainants further add that, in any case, the AVIQ does not demonstrate that if the complainants had, even though they did not wish to be vaccinated, accessed the DOCLR platform after receiving the aforementioned invitations, they would have been able to find the existence of the "privacy" link and access the information of Article 14 of the GDPR by clicking on it. According to the complainants, this link simply did not exist.

48. Regarding the content of the information, the complainants argue that the AVIQ cannot further prove what specific information each complainant would have had access to if they had visited the DOCLR platform and clicked on the "privacy" link (assuming this link existed, which it did not (see above)). The complainants indicate that by clicking on the DOCLR link provided by the AVIQ in its email dated August 31, 2021, in response to the inquiry of complainant No. 1, the content of a document titled "Security Policy for the Online Invitation Application" appears, and not the DOCLR - vaccinations privacy policy produced by the AVIQ. Furthermore, the document "DOCLR - vaccinations Privacy Policy" produced as evidence by the AVIQ is the version updated on August 4, 2021, which is a document dating several months after each of the vaccination invitations sent to the complainants in March, May, and July 2021.

49. Finally, the complainants also denounced during the hearing on January 30, 2024, that the contact details of the AVIQ's DPO were not included in any of the vaccination invitations addressed to them.

****II.2.2. Position of the Defendant****

50. As previously mentioned, the defendant argues that the DOCLR privacy policy has always been available on the website of the platform of the same name. It emphasizes that this privacy policy is accessible to everyone. Anyone can freely consult it regardless of their wish to be vaccinated or not.

No appointment for vaccination conditions access to it.

51. The defendant adds that the first version of the privacy policy dates back to February 18, 2021, and was available before the invitations were sent to the complainants in March, May, and July 2021. In this regard, two versions of the privacy policy were established (one of which was updated on August 4, 2021), which explains the difference between the two documents, of which the defendant specifies that the content has always been substantially identical.

52. It also emphasizes that the privacy policy contains information regarding all the mentions that must appear in a privacy policy in compliance with Article 14 of the GDPR applicable in this case.

53. In conclusion, the defendant asserts that the concerned individuals were sufficiently able to understand the data processing carried out in the context of the vaccination invitation addressed to them and, if necessary, inquire with the data controllers by consulting the DOCLR site referenced in these invitations in compliance with the principle of transparency. According to the defendant, the complainants were timely informed of the information related to the processing of their data in the context of the vaccination invitation in compliance with Articles 12 and 14 of the GDPR.

****II.2.3. Position of the Disciplinary Chamber****

54. The Disciplinary Chamber recalls that it is the responsibility of the data controller to comply with the principle of transparency enshrined in Article 5.1. a) of the GDPR as well as the obligation to inform the concerned individuals in accordance with Article 14 of the GDPR in the case of indirect collection of data concerning them, as in this case. Article 14 must also be applied in conjunction with Article 12 of the GDPR.

55. The terms of both Article 5.2 of the GDPR ("The data controller is responsible for compliance with paragraph 1 and is able to demonstrate that it is respected (accountability)") and Article 14 of the GDPR ("When personal data has not been collected from the concerned individual, the data controller provides that individual with all the following information: (...)") are unequivocal in this regard.

56. In the case of joint responsibility as in this instance, it is up to the joint controllers to determine together who will perform which tasks to ensure that the processing is compliant with the requirements of the GDPR. This requirement aims to guarantee, when multiple actors are involved as in this case, particularly in situations where...

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complex data processing environments, that the responsibility for compliance with data protection rules is clearly allocated in order to prevent the protection of personal data from being diminished or a negative conflict of jurisdiction from leading to breaches resulting in non-compliance with certain obligations by one of the parties involved in the processing. These responsibilities must be allocated based on the factual circumstances of the case in order to reach an operational agreement.

57. Article 26.1 of the GDPR specifies for this purpose that joint controllers of processing define their respective obligations (their tasks) in order to ensure compliance with the requirements of the GDPR, "in particular" regarding the exercise of the rights of the data subject and their respective obligations concerning the communication of the information referred to in Articles 13 and 14 of the GDPR.

58. It is clear from this provision that joint controllers of processing must determine who will be responsible for responding to requests from data subjects when they exercise the rights conferred upon them by the GDPR, but also for communicating to them the information referred to in Articles 13 and 14 of the said regulation. The use of the term "in particular" in this provision indicates that the obligations subject to the allocation of responsibilities are not exhaustive. It extends to other obligations of the data controller under the GDPR (see below and points 164 and 165 of the Guidelines).

59. In execution of Article 7.2 of the aforementioned Cooperation Agreement, the defendant and the 7 other concerned entities have, as previously mentioned, signed an agreement aimed at giving effect to Article 26 of the GDPR. Article 2 of this "agreement art. 26 of the GDPR" specifies in its version 1.0 applicable at the time of the facts that its purpose is "the definition of the roles and responsibilities of the different data controllers regarding the data subjects in the context of the processing of personal data related to the organization and recording of COVID-19 vaccinations" as well as "the manner in which they fulfill their joint and respective obligations in order to ensure compliance with the GDPR."

60. The Contentious Chamber notes that Article 4.7 of this "agreement art. 26 of the GDPR" provides

that the data subjects affected by the processing operations will receive the required information within the required timeframes when such data has not, as in this case, been collected directly from them and this in accordance with Articles 12 and 14 of the GDPR. The same Article 4.7 further specifies that in this case, this information will be communicated in several ways. One of them provides that "the web application on which citizens...

6 European Data Protection Board (EDPB), Guidelines 07/2020 on the concepts of controller and processor in the GDPR https://www.edpb.europa.eu/system/files/2023-10/edpb_guidelines_202007_controller_processor_final_fr.pdf (points 161 et seq.).

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or their representatives may activate the vaccination codes, will provide a consultable privacy statement: Doclr. Another provision states that a joint privacy statement will be published on the Vaccinnet website in French and Dutch (www.vaccinnet.be).

61. In order to conclude on the compliance or violation of Article 14 of the GDPR by the defendant, the Contentious Chamber must ensure that the information listed in both its paragraph 1 and 27 has indeed been provided to the data subject in the sense that Article 14 of the GDPR gives to this obligation.

62. The Guidelines of the European Data Protection Board (EDPB) regarding transparency state in their point 33 that, "the word 'provide' is crucial in this case. It means that the data controller must take concrete measures to provide the information in question to the data subject or to actively direct the data subject to the location of said information (for example, through a direct link, a QR code, etc.). The data subject should not have to actively search for the information covered by these articles among other information such as the terms of use of a website or an application."

63. In this case, the Contentious Chamber is of the opinion, regardless of whether the privacy policy was or was not effectively consultable at the date of receipt of the invitation letters or what its content (consultable version) was on either date (which the Contentious Chamber is unable to ascertain based on the documents in the file – see *infra*), that the defendant did not provide – in the sense required by Article 14 of the GDPR – the elements of information listed in paragraphs 1 and 2 of this article to the complainants.

64. The Contentious Chamber indeed notes that none of the invitation letters, emails, or SMS messages sent to the complainants contains an explicit mention that, by scanning the QR Code present on the paper letters or by clicking on the "Make an appointment" button or by clicking on the URL provided both on the paper letters and in the SMS, the data subject would have access to information regarding the data processing that concerns them, including those that led to the invitation received.

As provided by the Guidelines of the European Data Protection Board (EDPB) regarding transparency, the DPA – through its Contentious Chamber – is indeed of the opinion that both the elements listed in paragraph 1 and in paragraph 2 of Article 14 of the GDPR must, when relevant in relation to the processing operations carried out, be provided to the data subject. Working Party "Article 29", Guidelines on Transparency, WP 260 of April 11, 2018 (point 23), <https://ec.europa.eu/newsroom/article29/items/622227/en> taken up by the EDPB during its inaugural session on May 25, 2018.

<https://www.edpb.europa.eu/our-work-tools/general-guidance/endorsed-wp29-guidelines>

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65. Even assuming, as the defendant claims, that the QR Code refers to the DOCLR privacy policy then in effect, and that access to it is not conditioned by the willingness to make an appointment for vaccination, no indication is provided, upon reading the invitation received by mail, to the concerned individual that behind this QR Code, they will find such a privacy policy. On the contrary, the letter specifies that an appointment can be made by scanning the QR Code. The same applies to the simple mention of the website www.vaccinnet.be, which is referenced as a link to make an appointment.

66. This is also true for the "Make an Appointment" button or the URL mentioned in the emails and SMS, with the same aggravating factor that, in the absence of an indication of the type mentioned in points 64-65 above, it can reasonably be considered that the recipient of the invitation will not click on

this button or this URL if they do not intend to get vaccinated. No indication is given that information on data processing is available through these means. In this regard, the Contentious Chamber is not unaware of the terms of Article 4.7 of the "Article 26 GDPR Agreement" already cited, which explicitly provides that information will be provided "via the web application on which citizens or their representatives can activate the vaccination codes." However, this circumstance did not prevent the defendant from providing any additional information that is directly accessible.

67. In other words, the Contentious Chamber finds that the defendant did not take measures to directly inform the concerned individuals (in this case, the complainants) nor actively direct them to the information required by Article 14 of the GDPR. Therefore, it did not provide information in the sense required by this provision.

68. Consequently, the Contentious Chamber concludes that the defendant has thus failed in its obligation to inform in the sense of Articles 14.1 and 14.2 of the GDPR.

69. The Contentious Chamber decides that this failure is coupled with a failure to comply with Articles 5.1. a), 12.1, and 12.2 of the GDPR.

70. By not providing the required information and refraining from any direct and clear message actively directing the concerned individuals towards it, the defendant also did not satisfy the principle of transparency established in Article 5.1. a) of the GDPR and reiterated in Article 12.1 of the GDPR. The quality of the content of the information is not in question here (see *infra*); rather, it is its accessibility.

71. The Contentious Chamber also regrets, notwithstanding the terms of Article 4.7 of the "Article 26 GDPR Agreement" cited above, that the privacy policy invoked and produced by the defendant was titled "DOCLR Privacy Policy –

9 It is the Contentious Chamber that emphasizes this.

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vaccinations." The title of the privacy policy thus suggests (or at least may suggest) that it belongs to the DOCLR platform. The title is likely to mislead or cause some confusion for the reader, particularly in an already complex context of data processing. Indeed, the DOCLR platform is not the data controller, and the data subjects are not in contact with it. These data subjects, such as the complainants, also receive correspondence on the letterhead of the defendant.

72. Certainly, the Contentious Chamber understands that this title is related to the fact, as the defendant explained in its conclusions and during the hearing, that all the concerned entities that are joint controllers of the processing opted to provide information on the DOCLR platform, which they all chose as a common subcontractor. Under this privacy policy, the joint controllers are also identified in the section "Who is the controller of your personal data?" and DOCLR is qualified as a subcontractor in the section "Subcontractors."

73. The Contentious Chamber emphasizes that it is essential to be particularly attentive to the quality of the message conveyed by the title of a document and to attempt to avoid, through this title, any risk of confusion regarding its scope. The title of such a document serves as its entry point, especially when it is an electronic document whose URL would precisely reflect the title of the document.

74. Article 12.2 of the GDPR has also not been respected by the defendant, as by failing to provide the elements listed in Article 14.1-2 of the GDPR, the exercise of their rights by the data subjects is potentially compromised since they are neither informed of these rights nor of the modalities for exercising them with the data controller.

75. Furthermore, the contact details of the defendant's DPO are nowhere mentioned on the invitations sent. However, the accessibility of the DPO is a key element for the exercise of the rights of the data subjects. It is certainly not the only channel for exercising these rights, but in this case, the privacy policy explicitly states that for the exercise of their rights, data subjects under the jurisdiction of the Walloon region, such as the complainants, must contact the DPO of AVIQ. Therefore, the contact address of the latter should have been clearly and directly included on the invitations (without going through QR Codes, appointment buttons, and other URLs that may refer to the privacy policy).

76. In conclusion on this point, the defendant has therefore not facilitated "the exercise of the rights conferred on the data subject under Articles 15 to 22" in violation of Article 12.2 of the GDPR.

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77. In addition to the findings of breaches mentioned above, the Contentious Chamber notes that the defendant does not produce the privacy policy in effect at the time of the reported facts. Only the updated version from August 2021 is submitted as evidence. The defendant does refer to an email sent to complainant No. 1 that refers to it. The complainants contest that the link provided refers to the said privacy policy. Without questioning the good faith of either party, the Contentious Chamber must note that this reference by AVIQ to a link in a letter sent does not sufficiently demonstrate the existence of this privacy policy at that date.

78. In this regard, the Contentious Chamber recalls that in accordance with Articles 5.2 and 24 of the GDPR, the data controller is required to demonstrate compliance with the provisions of the GDPR and is obliged to implement the technical and organizational measures for this purpose. The availability of documentation attesting to this compliance is essential in this regard. The successive versions of such an important document as the privacy policy, the dates of its availability, and any adaptations are indispensable for demonstrating this compliance over time. It is indeed not uncommon for the Data Protection Authority (APD) to be seized of relatively old facts. Moreover, the limitation period to which it is subject is 5 years from the commission of the facts (Article 105 of the LCA).

79. Finally, the Contentious Chamber notes that, as already mentioned, it only has the version of the privacy policy updated on August 4, 2021. Strictly speaking, it is therefore not in a position to examine the quality of the privacy policy that would have been available at the time of sending vaccination invitations to the complainants in March, May, and July 2021.

80. The Contentious Chamber, however, endeavors below to verify that the elements of both Article 14.1 of the GDPR and Article 14.2 of the GDPR are provided for therein, as long as it remains applicable to this day.

81. The Contentious Chamber notes that the identity and contact details of the data controllers (Article 14.1 a) of the GDPR) (section "Who is the data controller of your personal data?") are mentioned, as well as the contact details of the DPO (Article 14.1 b) of the GDPR): the defendant being a public authority, it is indeed required to designate one in accordance with Article 37.1 a) of the GDPR.

82. As required by Article 14.1 c) of the GDPR, the purposes of the processing for which the personal data are intended (section "What purposes do we collect, process, and store your personal data for?" as well as in the section "For what other purposes do we use your personal data?") as well as the legal basis for the processing are specified (section "What is the legal basis for this processing?").

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of data?"). The purpose of the invitation to get vaccinated is thus announced, and reference is made to Article 6.1.e) of the GDPR (public interest or exercise of public authority) and Article 9.2.i) of the GDPR, as well as concretely to the aforementioned Cooperation Agreement. In this regard, the Contentious Chamber emphasizes that the privacy policy adequately addresses one of the lawful bases of Article 6 of the GDPR combined, as required by the CJEU for the processing of sensitive data (including health-related data), with the relevant assumption of lifting the prohibition on processing provided for in Article 9.2. of the GDPR, given that data related to vaccination is processed (vaccine received). More concretely, the Contentious Chamber notes that the privacy policy does not merely mention Article 6.1.e) combined with Article 9.2.i) of the GDPR but specifies the standard on which the public interest mission is based within the meaning of said Article 6.1.e) of the GDPR, thus fully complying with the information requirement.

83. Furthermore, the mentions required by Article 14.1.d) of the GDPR (categories of personal data concerned) and 14.1.e) of the GDPR (where applicable, the recipients or categories of recipients of the personal data) are also present respectively in the sections "What personal data is processed?" and "We share your data with the following organizations." No mention is made regarding Article 14.1.f) of the GDPR, leading the Contentious Chamber to conclude that no data transfer occurs outside the European Union or the European Economic Area (EEA).

84. Regarding the mentions of Article 14.2. of the GDPR, the following information is presented in the privacy policy. The duration for which the data will be retained is specified in the section "How long do we keep your personal data?" (Article 14.2.a) of the GDPR), referencing a calculable timeframe. The rights of the data subject are listed in the section "What are your rights" and are formulated in an understandable manner for everyone (Article 14.2.c) of the GDPR). For example, instead of simply

listing the rights as stated in the GDPR, the text provides more accessible formulations such as "Your data is incorrect? In that case, we must rectify it." Logically, the list does not include the right to data portability since it is not applicable (Article 20.3 of the GDPR). The contact address for exercising these rights is also mentioned. The privacy policy further includes a section dedicated to "How to file a complaint" (Article 14.2.e) of the GDPR), and the source of the data (Article 14.2.f) of the GDPR) is specified concerning the different categories of data processed. For example, the section "What data is processed" details that the contact information of the data subjects comes from the National Register of Natural Persons and mutual insurance companies. The relevant processing is neither based on Article 6.1.f) of the GDPR nor on Article 6.1.a) of the GDPR, so the mentions of Article 14.2.b) and d) of the GDPR are not included. The one provided

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in execution of Article 14.2. g) of the GDPR is not applicable either, as no automated decision-making is being carried out under Article 22 of the GDPR.

85. In conclusion on this point regarding the content of the privacy policy, the Contentious Chamber is of the opinion that in its version of August 4, 2021, it appears to comply with the requirements of Article 14 read in conjunction with Article 12.1 of the GDPR. However, this finding does not undermine the conclusion of the violation of Article 14.1-2 and Articles 5.1. a), 12.1, and 12.2 of the GDPR outlined in points 63-77 above, as the defendant did not satisfactorily provide the required information to the data subjects.

II.3. Regarding the alleged violation of Article 26 of the GDPR

II.3.1. Position of the complainants

86. The complainants assert that AVIQ would have violated Article 26 of the GDPR in that it did not, while it was required to do so under Article 7.2 of the aforementioned Cooperation Agreement: (a) define its obligations to ensure compliance with the requirements of the GDPR through an agreement within the meaning of Article 26 of the GDPR and, a fortiori, (b) make the main points of this agreement public to the data subjects.

87. The complainants' argument is based on the fact that the agreement was only signed after the first invitation in March 2021 at the very least, and it is not even certain that it existed thereafter because, if that had been the case, the defendant's letters would have referred to it, which was not the case.

II.3.2. Position of the defendant

88. AVIQ believes it has unequivocally demonstrated that such an agreement was indeed concluded on March 3, 2021, between the joint controllers of processing in execution of Article 7.2 of the Cooperation Agreement, that is, before the sending of vaccination invitations to the complainants in March, May, and July 2021 ("the Article 26 GDPR agreement").

89. AVIQ also believes it has demonstrated that the main points of this "Article 26 GDPR agreement" are available in the aforementioned DOCLR privacy policy (see above): by communicating information regarding the "Article 26 GDPR agreement" between joint controllers of processing through the publication of the DOCLR privacy policy, AVIQ believes it has validly communicated the main points of this "Article 26 GDPR agreement" concluded by the joint controllers of processing.

90. In conclusion, AVIQ argues that no violation of Article 26 of the GDPR has been committed and requests that this complaint be dismissed.

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II.3.3. Position of the Contentious Chamber

91. The Contentious Chamber has already indicated that under Article 7.2 of the Cooperation Agreement, the defendant produced an agreement within the meaning of Article 26 of the GDPR, which at the very least addresses the issue of the exercise of the rights of data subjects and the communication of information regarding data processing (Title I and Title II.1).

92. As recalled above, the complainants contest the existence of such an agreement from the date of its signature and that it did not exist at the time of the reported facts.

93. The Contentious Chamber notes that the document produced by the defendant, consisting of version 1.0 of the "Article 26 GDPR agreement," indicates on page 16 that it was "Done in Brussels in 8 copies, on March 3, 2021." The agreement then contains the electronic signatures of the various

signatories, with the signature for AVIQ dated April 11, 2021. Furthermore, the first invitations, which the Contentious Chamber has been able to consider, are not dated, and the parties have agreed to place them in the course of March without an exact date.

94. The mention of the conclusion of the "Article 26 GDPR agreement" on March 3, 2021, the specific circumstances of the pandemic, and the time necessarily taken to gather the various signatures (which were spread between April 11 and May 18) are all elements that lead the Contentious Chamber not to find a breach of Article 26.1 of the GDPR based on the alleged non-existence of such an agreement on the part of the defendant.

95. Regarding the content of this "Article 26 GDPR agreement," this point has not been discussed by the parties. The Contentious Chamber will limit itself to recalling below the elements that such an agreement under Article 26.1 of the GDPR must contain.

96. As highlighted by the EDPB in its aforementioned Guidelines, the measures taken to ensure compliance with the requirements and related obligations that joint controllers of processing should consider when defining their respective obligations include (in addition to those specifically referred to in Article 26.1) notably, but not limited to (points 166 and following of the guidelines):

a. The implementation of the general principles of data protection (Article 5)

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b. The legal basis for processing (Article 6)

c. Security measures (Article 32)

d. Notification of a personal data breach to the supervisory authority and to the data subject (Articles 33 and 34)

e. Data protection impact assessments (Article 35)

f. The use of a processor (Article 28)

g. Transfers of data to third countries (Chapter V)

h. The organization of contacts with data subjects and supervisory authorities.

97. Such an agreement within the meaning of Article 26.1 of the GDPR, once concluded, Article 26.2 of the GDPR adds that "(...) The main points of the agreement are made available to the data subject." It is not sufficient for the joint controllers to agree among themselves; it is also necessary that the arrangement they have organized is made known to the data subjects.

98. In its same guidelines, the EDPB specifies in point 179 that Article 26.2 of the GDPR aims to ensure that the data subject is aware of the "main points of the agreement," so that they know which controller is responsible for what. For example, the data subject must know precisely which controller is the point of contact for the exercise of their rights (notwithstanding the fact that they can exercise these rights against each of the joint controllers).

99. The GDPR does not specify what is meant by "main points of the agreement," nor how the information should be made available to the data subjects.

100. As for how this information is "made available to the data subject," it is not further specified.

Unlike other provisions of the GDPR (such as Article 30.4 for the record of processing activities or Article 40.11 for the record of approved codes of conduct), Article 26.2 of the GDPR does not indicate that the provision should be "upon request" or that "appropriate publicity" should be ensured.

Therefore, it is up to the joint controllers to decide the most effective means of making the main points of the agreement available to the data subjects (for example, with the information referred to in Articles 13 or 14, in the privacy policy or upon request from the DPO, if applicable, or from the designated point of contact) (point 181 of the guidelines).

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101. The Contentious Chamber is of the opinion that the defendant cannot limit itself to stating that via its publicly accessible privacy policy, it has made the main points of the "Article 26 GDPR agreement" available to the data subject in execution of Article 26.2 of the GDPR.

102. In this regard, the Contentious Chamber recalls that it has concluded above that AVIQ was not able to demonstrate that it had validly provided the information in its privacy policy to the data subjects, nor even that this privacy policy was actually accessible at the time of sending the invitations to get

vaccinated. Consequently, the Contentious Chamber found a breach of Article 14.1-2 on the part of the latter as well as a breach of Article 5.1.a), 12.1, and 12.2 of the GDPR.

103. Therefore, the Contentious Chamber decides that the defendant has also committed a breach of Article 26.2 of the GDPR.

104. Furthermore, regarding the “main points of the agreement” still in the sense of Article 26.2 of the GDPR (content), the Contentious Chamber recalls that the EDPB recommends that they cover at least all elements of the information referred to in Articles 13 and 14 of the GDPR, which should already be accessible to the data subject. For each of these elements, the agreement should specify which joint controller is responsible for ensuring compliance. The main points of the agreement must also indicate the point of contact, if designated (point 180 of the guidelines).

105. Without being exhaustive in its examination on this matter, the Contentious Chamber notes, additionally, that aside from the mention of the DPO for each concerned entity, the privacy policy does not detail for each element of Article 14 of the GDPR who is responsible for ensuring compliance. As indicated above, the privacy policy does address the various elements required by paragraphs 1 and 2 of Article 14 in a generally adequate manner (point 85), but these elements are provided without precision regarding co-responsibility, using “we” without further specification. The term “joint controller” is not mentioned even once, and the text gives the impression that each entity identified as a joint controller is responsible for the entirety without any other modality of co-responsibility.

III. Regarding corrective measures and sanctions

106. Under Article 100.1 of the LCA, the Contentious Chamber has the power to:

1° dismiss the complaint;

2° order the dismissal;

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3° pronounce a suspension of the ruling;

4° propose a settlement;

5° issue warnings or reprimands;

6° order compliance with the requests of the concerned individual to exercise their rights;

7° order that the interested party be informed of the security issue;

8° order the freezing, limitation, or temporary or permanent prohibition of processing;

9° order compliance with processing requirements;

10° order the rectification, restriction, or deletion of data and notification of such to the data recipients;

11° order the withdrawal of the accreditation of certification bodies;

12° impose penalties;

13° impose administrative fines;

14° order the suspension of cross-border data flows to another State or an international organization;

15° forward the file to the Public Prosecutor's Office of the King of Brussels, which will inform it of the follow-up given to the file;

16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

107. It is up to the Contentious Chamber to decide on the most appropriate sanction in light of the breaches identified in Articles 5.1. a), 12.1, 12.2, 14.1-2, and 26.2 of the GDPR and all the circumstances of the case at hand.

108. The Contentious Chamber is mindful of the fact that, as the defendant emphasizes in its conclusions, the context of the pandemic was unprecedented, expanded the scope of action of the defendant, and required a rapid response from it as well as from other entities involved. The Contentious Chamber is also sensitive to the argument of the complainants—without recognizing them any right to request a specific sanction, as the choice of such belongs exclusively to the Contentious Chamber—that the GDPR has been in effect since 2018 and that exemplary behavior is expected from public authorities, especially in light of the essential principles of the GDPR enshrined by the violated provisions.

109. The circumstances invoked by AVIQ, however real they may be, do not eliminate the identified breaches. These are a reality and must be sanctioned. The Contentious Chamber thus decides to issue a reprimand to AVIQ as a sanction under Article 100.1.3° of the LCA for these breaches of

essential provisions of the GDPR since these breaches are all related to the principle of transparency and the right to information of the concerned individuals in a context where they had no choice but to have their data processed. The fact that the Contentious Chamber is not authorized by the Belgian legislator to sanction these breaches with an administrative fine due to the public authority status of the defendant is also a factor (resulting, indeed, from the will of the legislator) that is taken into account in its assessment. Failing to issue a reprimand to the defendant (and not a dismissal or a classification without follow-up as requested by the defendant), the Contentious Chamber believes it would not comply with the provisions of Article 84 of the GDPR, which states that the sanction must be "effective, proportionate, and dissuasive" in light of the breach.

110. The Contentious Chamber decides to accompany this reprimand with a detailed order for compliance in accordance with Article 100.1. 9° of the LCA in the event that this type of vaccination invitation should still be sent on the date of this decision and in the future.

IV. Publication of the Decision

111. Given the importance of transparency regarding the decision-making process and the decisions of the Contentious Chamber, this decision will be published on the website of the DPA, with the removal of direct identification data of the complainants and thus with the exception of the direct identification of the defendant. Indeed, the Contentious Chamber believes that for public information, for the proper understanding of its decision, and considering the legal references cited in support of its reasoning, the mention of the identity of AVIQ cannot be omitted.

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filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Contentious Chamber

14 The request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed with the registry.